

Court No. - 34

Case :- WRIT - C No. - 67373 of 2012

Petitioner :- Santosh Kumar Yadav

Respondent :- State Of U.P. Thru M.D.U.P.Power Corporation Ltd.& Others

Petitioner Counsel :- G.K. Gupta

Respondent Counsel :- Mahboob Ahmad

Hon'ble Sunil Ambwani,J.

Hon'ble Pankaj Naqvi,J.

We have heard Shri G.K. Gupta, learned counsel appearing for the petitioner. Learned Standing Counsel appears for respondent nos.1. Shri Mahboob Ahmad appears for respondent nos. 2 and 3.

The petitioner has prayed for installation of a new electricity connection in the premises/shop under his tenancy on the first floor in house No.C.K.13/9, Mohalla Satti Chaura, Ward Chowk City, Varanasi.

Shri Mahboob Ahmad appearing for the respondents submits that the petitioner has not made an application for new electricity connection in accordance with the procedure prescribed under Para 4.3 to 4.9 of the U.P. Electricity Supply Code, 2005, which requires several details including the payment of dues on dues, of the connection in the premises, if any, and the consent of the owner/landlord of the premises.

This writ petition, praying for new connection without making appropriate application in accordance with the law, is misconceived and is **dismissed**. It goes without saying that if the petitioner applies in accordance with the law, his application for new electricity connection will be considered expeditiously.

Order Date :- 21.12.2012

RKP